

trust, therefore, of a copyhold cannot be declared by *parol* so as to make the copyholder a trustee for another (*c*).

2. **Chattels real within the Act.** — *Chattels real* are within the purview of the Act, and a trust of them must therefore be evidenced by writing, as in the case of freeholds (*d*).

3. **Chattels personal not within the Act.** — But *chattels personal* are not within the Act, and a trust by averment will be supported (*e*).¹ It has even been held that a *sum of money secured upon a mortgage of real es- [*54] tate is not an interest within the Act, and that a *parol* declaration is good (*a*). And if a trust be once created by

(*c*) Mr. Hargrave seems to have thought, that even the *uses of a surrender* were *trusts* within the intention of the Act; for, in a note to Coke on Littleton, he observes, "A nuncupative will of copyholds was a valid declaration of the uses, where the surrender was silent as to the form, till the 29 Car. 2. required all declarations of trust to be in writing." But the surrender of a copyhold to uses is merely a direction to the lord in what manner to regrant the estate, and the surrenderee is a *cestui que use* by misnomer only, and not in fact; and indeed the Court of Queen's Bench has expressly decided that uses of copyholds are not within the Statute of Frauds, on the ground that a surrender to uses is not the creation of a trust or confidence apart from the legal estate, but a mode established by custom of transferring the legal estate itself. *Doe v. Danvers*, 7 East, 299.

(*d*) *Skett v. Whitmore*, Freem. 280; *Forster v. Hale*, 3 Ves. 696; *Riddle v. Emerson*, 1 Vern. 108; and see

Hutchins v. Lee, 1 Atk. 447; *Bellasis v. Compton*, 2 Vern. 294.

(*e*) *Bayley v. Boulcott*, 4 Russ. 347, per Sir J. Leach; *M'Fadden v. Jenkins*, 1 Hare, 461, per Sir J. Wigram; S. C. 1 Ph. 157, per Lord Lyndhurst; *Grant v. Grant*, 34 Beav. 623; *Thorpe v. Owen*, 5 Beav. 224; *George v. Bank of England*, 7 Price, 646; *Hawkins v. Gardiner*, 2 Sm. & G. 451, per V. C. Stuart; *Peckham v. Taylor*, 31 Beav. 250; *Fordyce v. Willis*, 3 B. C. C. 587, per Lord Thurlow; *Benbow v. Townsend*, 1 M. & K. 510, per Sir J. Leach; *Fane v. Fane*, 1 Vern. 31, per Lord Nottingham; *Nab v. Nab*, 10 Mod. 404. (But this case, as reported 1 Eq. Ca. Ab. 404, appears an authority the other way.) The dictum of Lord Cranworth in *Scales v. Maude*, 6 De G. M. & G. 43, that a trust could not be declared by *parol* in favor of a volunteer was afterwards disclaimed by him. *Jones v. Lock*, 1 L. R. Ch. App. 28.

(*a*) *Benbow v. Townsend*, 1 M. & K. 506; and see *Bellasis v. Compton*, 2 Vern. 294.

¹ *Thacher v. Churchill*, 118 Mass. 108; *Davis v. Coburn*, 128 Mass. 377; *Chace v. Chapin*, 130 Mass. 128; *Maffitt v. Rynd*, 69 Pa. St. 380; *Porter v. Bank*, 19 Vt. 410; *Crissman v. Crissman*, 23 Mich. 218; *Robson v. Harwell*, 6 Ga. 589; *Kimball v. Morton*, 1 Halst. Ch. 26; 43 Am. Dec. 621. A *parol* declaration is sufficient to raise a trust in a mortgage secured by real estate. *Childs v. Jordan*, 106 Mass. 322; *Patterson v. Mills*, 69 Ia. 755; *Hackney v. Vrooman*, 62 Barb. 650. Likewise in money received from the sale of real estate. *Maffitt v. Rynd*, 69 Pa. St. 380; *Coburn v. Anderson*, 131 Mass. 513.